

This is the 1st affidavit
of Evan Gallan in this case
and was made on August 11, 2026

No. _____
Kelowna Registry

IN THE SUPREME COURT OF BRITISH COLUMBIA

BETWEEN:

DANICA WOKOECK

CLAIMANT

AND:

TYSON WOKOECK

RESPONDENT

AFFIDAVIT

I, EVAN GALLAN, of 3752 Wetton Road, West Kelowna, British Columbia, V4T 2C1,
Builder at TRU TRUSS, SWEAR (OR AFFIRM) THAT:

1. I have personal knowledge of the facts and matters deposed to in this affidavit, except where stated to be made on information and belief, and where so stated, I verily believe the same to be true.
2. I make this affidavit in support of the Respondent, Tyson Wokoeck, and for no improper purpose.
3. I have known the Respondent since February 15, 2025, when I became a tenant and now friend of the Respondent and his father. I resided as their tenant until my fiancée and I moved out of the rental unit. Since moving out, I have remained in contact with the Respondent and have attended at his residence from time to time to assist him when needed.

4. Over approximately the last month, I have personally observed that the Respondent has been under significant stress and has been working diligently to prepare for the hearing in this proceeding concerning his daughters. Both while I was still a tenant and after my fiancée and I moved out, there were several days on which I attended to assist him with that preparation.
5. During the day on Thursday, August 6, 2026, the Respondent's computer began to slow down dramatically, which I believe was caused by the large volume of material being processed. The computer then crashed and stopped working, and the Respondent's printer stopped working completely. As a result, we had to change focus from printing and organizing the documents to trying to get the computer working again, so that we could access the documents and information stored on it.
6. On Saturday, August 8, 2026, roughly noonish I returned to Tyson's residence to try again to help him get his computer working as he was in panic trying to get it going. Tyson had barely slept, and explained to me how he fell asleep at the computer, working on it this morning. Trying to get everything fixed. He was so disappointed and upset that he couldn't even barely speak that Danica wouldn't let him see his daughter's again. I could I have some knowledge of computers, but not extensive knowledge. My attempts to repair his computer were unsuccessful. As a result, the Respondent continued on doing it himself.
7. Jeff was permitted by court order on Saturday, August 8, 2026, but because he was up all night working with Tyson on his affidavit and had barely slept. He fell asleep and never woke up to his alarm. So he missed picking up the girls at ten AM. Then at eleven fifteen went to Danica's house and asked if he could have them as he apologized profusely and explained what happened and apparently she just coldly turned him down. He was very upset and actually crying, as he knew what this meant to Tyson.
8. I have since learned that access did not take place on Sunday, August 9, 2026, either. I have personally viewed photographs and videos of Jeff at the McDonald's in West Kelowna that day, arriving approximately ten minutes early for the scheduled exchange, and I am informed by Jeff that no one attended to meet him. I have also reviewed what I understood to be a court order providing that the exchanges were to occur on both days. I further reviewed an email from the Claimant stating that

the Respondent was to have a FaceTime call with the children at 5:00 p.m., and I was there, the call did not take place. I do not understand how these missed visits serve the best interests of the children.

9. While assisting the Respondent with organizing the exhibits and other materials for the hearing, I reviewed certain materials prepared or filed on behalf of the Claimant. Based on my own personal knowledge and observations, I can attest that some of the statements made on the Claimant's behalf in those materials are completely not true.
10. On Saturday August 8, I saw Jeff Carroll, the Respondent's good friend. I personally observed that he was visibly upset. I am informed by Jeff, that he had been up most of the previous night assisting the Respondent with preparing his affidavit and had very little sleep; he fell asleep and did not wake to his alarm, and as a result missed picking up the Respondent's daughters at 10:00 a.m.; at approximately 11:15 a.m. he attended at the Claimant's home, apologized, explained what had happened, and asked if he could still pick up the girls; and the Claimant declined his request. At this time Jeff told the claimant he would be at the McDonald's no matter what tomorrow at 10am. Jeff was very upset, and actually crying as he knew how much this meant to the Respondent.
11. My fiancée and I are expecting our first child in December 2026, and becoming a father is something I think about seriously. I have had numerous conversations with my fiancée about how the Respondent has been treated with respect to his children. I have personally observed the Respondent with his daughters on many occasions, including at the residence, and I have seen nothing but love and care from him toward them; his daughters appear happy and enjoy themselves when they are with him. Nothing I have personally observed is consistent with the suggestion that he should not see his children, and if a father like the Respondent could be treated this way, it frankly frightens me as an expectant parent. It also concerns me deeply that, based on my own knowledge and observations, untrue statements appear to have been made in this proceeding without consequence.

SWORN (OR AFFIRMED) BEFORE ME)
at Kelowna, British Columbia,)

on _____, 2026.	)	
	)	
_____	)	_____
A Commissioner for taking Affidavits	)	EVAN GALLAN
for British Columbia	)	